

HOUSE BILL 1809

By Howell

AN ACT to amend Tennessee Code Annotated, Title 39
and Title 68, Chapter 221, relative to unlawful
disposal of waste.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-102(d), is amended by
deleting the subsection and substituting:

(1) Except as provided in subdivision (d)(2), an offense under this section is a
Class C misdemeanor.

(2) An offense under this section is a Class B misdemeanor if the person
commits the offense while engaged in the business of removing accumulated wastes
from subsurface sewage disposal systems, as defined in § 68-221-402.

SECTION 2. Tennessee Code Annotated, Section 68-221-413(a), is amended by
deleting the subsection and substituting:

(1) Except as provided in subdivision (a)(2), a violation of this part or rules
promulgated pursuant to this part is a Class C misdemeanor.

(2) An offense under § 68-221-406(a)(7) involving the unlawful disposal of
sewage or effluent from a subsurface sewage disposal system is a Class B
misdemeanor if the person commits the offense while engaged in the business of
removing accumulated wastes from subsurface sewage disposal systems.

SECTION 3. Tennessee Code Annotated, Section 68-221-713(f)(1), is amended by
deleting the subdivision and substituting:

(A) Except as provided in subdivision (f)(1)(B), a violation of this part or rules
promulgated pursuant to this part is a Class C misdemeanor.

(B) An offense under § 68-221-711(5) involving the unlawful discharge of sewage or any other waste or contaminant is a Class B misdemeanor if the person commits the offense while engaged in the business of removing accumulated wastes from subsurface sewage disposal systems, as defined in § 68-221-402.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.